MUYENGWA DANDEMUTANDE
and
DEREK YOUNG KEE
versus
ANTONY KATES
and
MASTER OF THE HIGH COURT N.O

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE;9, 10 & 12, 17 & 24 March & 15 May 2026.

Trial

PT Mudekwa, for Plaintiffs
H Ndudzo, for 1st Defendant
No appearance for 2nd Defendant

TSANGA J

Introduction

This matter concerns a dispute over the validity of the Last Will and Testament of the late Gregory Michael Young Kee who died in 2022. The first and second plaintiffs instituted summons commencing proceedings on 24 February 2022, seeking an order declaring the will null and void together with the Letters of Administration issued to the first defendant as Executor Testamentary. The challenge is founded on allegations that the will does not reflect the deceased's true wishes, that it is fraudulent, and that the deceased lacked capacity to dispose of immovable property registered in the name of a company.

Background facts

The claim for the invalidation of the will is premised on the ground that it was the express wish of the deceased that the first plaintiff, Muyengwa Dandemutande, his former

employee, inherit his movable and immovable property. This was on the basis that he had worked for him for a long time and had also taken care of him up until he died. The property in question is known as Stand No. 44 Palmer Owen Drive, Mabelreign, Harare where the deceased resided during his life time.

Dandemutande also claimed that the will in question is fraudulent on the basis that it is at variance with the alleged express wishes of the deceased in that the immovable property in question is registered in the name of Yemuro Investments (Private) Limited and not in the name of the deceased. The contention is that as such, the deceased lacked the legal capacity to bequeath property which did not belong to him. Amongst his bequests, he bequeathed his house to the first defendant Tony Kates and his car and other movables to Dandemutande. He left nothing to his brother the second plaintiff, Derek Young Lee.

Derek's case is that the deceased died without children and that, absent a valid will, his estate falls to be administered in accordance with the law of intestate succession. Given that Dandemutande is not an intestate heir, he did not pursue the matter at the hearing. Instead, Derek, as the intestate heir, took on the challenge of the validity of the will. The basis for Derek's challenge is that the signature to the will does not belong to his brother and that it is inconsistent with the signature that was forensically examined.

Plaintiffs' Evidence

Derek testified that the deceased was his younger biological brother. According to him, although they lived separately, they maintained contact through family visits and shared business interests. He stated that it had always been the deceased's wish that he inherits the immovable property situated at stand No. 44 Palmer Owen Drive, Mabelreign, Harare. Derek further testified that the will he had previously seen, bore what he described as a "Chinese signature," despite the deceased neither speaking nor writing Chinese. He submitted that the document shown to him in court differed from the one he had earlier seen. He also admitted that during the deceased's lifetime he had never closely examined documents bearing his brother's signature and was therefore unable to make a definitive comparison. Under cross-examination, he also acknowledged that he had neither witnessed the drafting nor execution of the will. He denied that there had been serious hostility between himself and the deceased, save for ordinary family disagreements.

The plaintiff also called a forensic handwriting expert, Leonard Nhari. He testified that he has extensive experience in forensic science, having served as Government Chief

Forensic Scientist before entering private practice. He explained that handwriting comparison involves analysing the design and construction of signatures in disputed and standard documents. In this regard, he had initially been supplied, by the plaintiffs' legal practitioners, with standard documents for comparison. These included an agreement of sale of a motor vehicle and a driver's licence. He compared these documents with a photocopy of a will obtained from the Master's Office. His analysis led him to conclude that the signature appearing on the questioned document, being the Will from the Master's Office did not correspond with the standard signatures supplied by the plaintiffs.

However, he had also received another will and additional standard documents from the defendants' legal practitioners. The defendant's documents, in this instance included a renunciation of foreign citizenship and a company-related agreement of sale bearing the deceased's signatures. Also availed was the original will. Upon comparing these documents, he concluded that the signatures matched and were consistent with those of the deceased even though the original produced Will and the copy of the one lodged with the Master were in his view not from the same document. However, the contents were the same.

In essence therefore, he acknowledged that he had effectively examined two different wills and had produced divergent reports depending on the source documents supplied by each side. He therefore informed the court that he could not conclusively attest to the authenticity or otherwise of the disputed will.

Defendants' Evidence

Tony Kates testified that he had known the deceased since 1975 and that they had maintained a close friendship over many years. He stated that the deceased had informed him during his lifetime that he intended him to have the house in question. He had also mentioned that he had prepared a will. However, he testified that he had not seen the will during the deceased's lifetime. According to him, he only became aware of the contents of the will several months after the deceased's death when a copy was given to him by one Ruth Tapfumaneyi, who had been managing the deceased's affairs at Yemurai Investments, a company in which the deceased was a sole shareholder. He discovered then that he had been appointed executor by the now deceased and named as a beneficiary of his house.

He further testified that the immovable property was registered in the name of a company in which the deceased was the sole shareholder, while both he and the deceased were directors. He stated that the deceased resided at the property. Upon attempting to lodge

the will with the Master's Office, he was informed that another will had already been registered. He denied any involvement in the drafting or preparation of the will. He also told the court that, to his knowledge, the relationship between the deceased and the second plaintiff had not been particularly close.

Mr Salim Solomon Desai, a legal practitioner, also testified that he was one of the attesting witnesses to the will. He stated that he had known the deceased since the 1990s through social interaction and golfing activities. According to him, the deceased specifically requested him to witness the execution of his will. Since two witnesses were required, he enlisted his wife to witness the document as well.

His testimony was that the deceased signed the will in his presence and appeared fully aware, deliberate, and confident in what he was doing. He further stated that he signed and authenticated the document at the deceased's request.

During cross-examination, plaintiffs' counsel questioned why he had both witnessed and authenticated the document and why the authentication had not been entered into his authentication register. She suggested that this omission constituted an irregularity invalidating the document. Mr Desai maintained, however, that the will had been properly executed and witnessed in accordance with legal requirements.

THE LEGAL ARGUMENTS

Plaintiff's legal arguments

Ms Mudekwa on behalf of the plaintiff submitted that the validity of the alleged will falls to be determined in terms of section 8 of the Wills Act [*Chapter 6:06*], which prescribes the formal requirements for a valid will, including that the will must be signed by the testator and properly witnessed. She stated that the central issue before the Court was therefore whether the deceased genuinely signed the purported will relied upon by the first Defendant.

She further submitted that in terms of section 18 of the Civil Evidence Act [*Chapter 8:01*], disputed handwriting may be compared with handwriting proved to be genuine in order to determine authenticity. In *Manolakasis* v *Estate Late Dr John J. Manolakakis and Others* HB105-14, the Court relied on handwriting expert evidence in declaring a disputed will null and void. The Plaintiff similarly relies on expert evidence demonstrating that the signatures appearing on the purported wills are inconsistent and cannot reliably be attributed to the deceased.

Her further argument was that the burden rests upon the propounder of the will to prove due execution and authenticity, particularly where suspicious circumstances exist. The first Defendant, she submitted had failed to discharge this burden in circumstances where the authenticity of the deceased's signature remains in dispute. The fact that the will was registered or "accepted" by the Master, she opined, does not constitute proof of validity. She drew on *Matunga & Another* v *Munemo & 3 Others* HH117/18, where the Court made it clear that registration by the Master is merely administrative and that questions concerning the validity and legal effect of a will remain matters for judicial determination.

The evidence before the Court was said to reveal material and unresolved irregularities. There appeared to have been two different wills. The version authenticated by the notary appeared incomplete and appeared to have a missing page. These circumstances were said to give rise to serious suspicion regarding both the authenticity of the document and the integrity of the execution process. The suspicion was said to be heightened by the fact that the first Defendant is the principal beneficiary under both versions of the alleged will and was the person in possession of the purported original. The Plaintiff's argument was that the purported "original" was only produced after concerns were raised regarding the signature appearing on the version held by the Master.

The notary's evidence was likewise argued to be unreliable. He failed to comply with basic notarial practice by authenticating an incomplete document and failing properly to record the notarial act. His conduct was said to undermine the credibility of the attestation process and further weakened the Defendant's version. On the totality of the evidence, Ms Mudekwa argued that the first Defendant failed to establish that the deceased executed the purported will in compliance with section 8 of the Wills Act. In the absence of satisfactory proof of the deceased's signature and due execution, she submitted that the purported will cannot be upheld and accordingly prayed for an order declaring the purported will null and void and annulling the letters of administration issued pursuant thereto.

The defendant's legal arguments

Ms Ndudzo, the first defendant's lawyer, argued that the plaintiffs' case is contradictory and legally unsustainable. More particularly, she highlighted that the second plaintiff, had abandoned the pleaded claim that the deceased intended the first plaintiff to inherit. Instead, he now claimed personal entitlement as the deceased's brother. This inconsistency, she said, undermines credibility and violates the rule that parties are bound by their pleadings, as affirmed in *Trinity Engineering (Pvt) Ltd* v *Karimazondo & Others HH*

672/15; *Samukange* v *Marange Resources (Pvt) Ltd HH 691/20*, and *Makachi & Others* v *Evangelical Church of Zimbabwe SC 103/22*.

She further highlighted that the alleged oral wishes of the deceased were in any event not proved. She argued that the alleged "express wishes" were unsupported by credible or corroborated evidence and were contradicted by the written Will. Reliance was placed on *Astra Industries Ltd* v *Chamburuka SC 27-12*, which confirms that a party must prove its case on a balance of probabilities.

She also argued that the fraud allegations are unsupported. The plaintiff alleged forgery, but the handwriting expert produced contradictory reports, weakening the claim. She relied on *Muzonda and Others* v *Usayiwevhu and Others HH 107/12*, which held that fraud must be proved by cogent evidence, and *Itayi Motsi* v *The State HH 185/15*, which confirmed that expert evidence must be weighed together with factual evidence.

She equally argued that the Will was properly executed and valid as it was signed freely and knowingly before competent witnesses, creating a presumption of validity. Reliance was placed on *Matanga* v *Denhure and Another HH 87/2008*, which affirmed that a duly executed Will is presumed valid unless disproved.

She additionally submitted that the property could lawfully be bequeathed. Although the property was registered in a company's name, she maintained that the company was merely the deceased's alter ego and that he exercised full beneficial ownership and control. The court was urged to prioritise substance over form.

The defendant also emphasized that freedom of testation must be respected as our law in the Wills Act as interpreted in case law, protects a person's right to distribute their estate as they choose. Reliance is placed on *Chagwada* v *Chigwada and Others* 2020 (2) ZLR 1353 (SC) where the Supreme Court held that courts should only interfere with a Will where there is clear evidence of fraud, undue influence, or incapacity. In addition his intention is said to have been clear. Reliance is placed on cases such as *Zvobgo* v *Madondo N.O & 5 Ors HH 96/2006* and *Majuru* v *Estate Late Caroline Majuru HH 404/16*, which emphasise that courts must give effect to the testator's true intention. In the final analysis, she submitted that plaintiff failed to discharge the burden of proof and that his evidence was speculative, contradictory, and unsupported by corroboration. Reliance was placed on *Zimbabwe Electricity Supply Authority* v *Dera 1998 (1) ZLR 500 (S)* on the civil standard of proof. The defendant therefore submitted that the Will was validly executed, reflected the deceased's true intentions, and was supported by credible evidence, while the plaintiffs' claims were inconsistent and unproven. The court was therefore urged to dismiss the claim with costs.

Issues for determination

The court is therefore required to determine:

1. Whether the impugned will was fraudulently made or forged;
2. Whether the deceased lacked testamentary capacity in respect of the immovable property; and
3. Whether the Letters of Administration should consequently be set aside.

The Applicable Principles

A will which appears regular on its face and complies with statutory formalities enjoys a presumption of validity. The burden rests upon the party alleging fraud, forgery, or invalidity to prove such allegations on a balance of probabilities. Fraud is never presumed and must be proved by clear and cogent evidence.

Further, courts are slow to invalidate a will merely because disappointed relatives believe the deceased intended a different disposition of his estate. Testamentary freedom permits a deceased person to bequeath property as he wishes, provided the will is properly executed and lawful. See *Chigwada* v *Chigwada.*

Analysis of the Evidence

(a) Alleged Express Wishes of the Deceased

In the declaration the plaintiffs contended that it had always been the deceased's express wish that the first plaintiff inherit the immovable property. The evidence tendered in support of this contention was largely speculative and unsupported by independent corroboration. At the hearing, the second plaintiff, Derek Kee in his evidence merely asserted that, as the deceased's blood relative, he was the person who ought to inherit the property. His claim was founded on intestacy should the Will be set aside otherwise no documentary evidence, prior testamentary instrument, written declaration, or independent witness was produced to confirm that the deceased intended to leave the property to him. Significantly, the second plaintiff admitted under cross-examination that he was not present when the will was prepared. He also did not witness its execution; and he had never seen documents bearing the deceased's signature during his lifetime.

His evidence regarding the alleged "Chinese signature" was also materially weakened by the revelation that the will before the court differed from the document he claimed to have previously seen. His testimony therefore lacked reliability and evidential weight. By contrast,

the defendants produced direct evidence from Mr Desai an attesting witness to the will, who testified that the deceased personally requested him to witness the document and signed it in his presence while appearing fully aware and confident of his actions. His testimony was clear, direct, and materially unshaken. This court is therefore inclined to attach greater weight to the evidence of an attesting witness than to speculative assertions concerning alleged family expectations.

(b) Allegation of Fraud and Forgery

The second plaintiff's principal attack concerns the authenticity of the signature appearing on the will. The forensic evidence, however, did not establish forgery conclusively. Instead, it revealed the existence of two separate versions of the will , namely a document lodged with the Master, whose signature did not correspond with certain specimen signatures supplied by the plaintiffs; and secondly, another version produced by the defendants, whose signature corresponded with specimen signatures supplied by the defendants. The forensic expert candidly conceded that, because he had examined two different sets of questioned documents and had produced two divergent reports, he could not ultimately attest to the authenticity or otherwise of the will.

This concession is critical. Expert evidence must assist the court to reach a definitive conclusion. This was not the case here. Moreover, the plaintiffs failed to establish how the alleged fraudulent document was created, by whom, or under what circumstances. No evidence linked the defendants to any act of forgery or manipulation. On the other hand, the defendant led viva voce evidence from an attesting witness confirming due execution of the will. The evidence of attestation was not effectively rebutted. The court therefore finds that the plaintiffs failed to discharge the burden of proving fraud or forgery on a balance of probabilities.

(c) The Issue of the Property Being Registered in a Company Name

The second plaintiff further argued that the immovable property could not validly be bequeathed because it belonged to a company and not to the deceased personally. The evidence established that the property was indeed registered in the name of a company in which the deceased was the sole shareholder and a director together with the first defendant. As a matter of company law, a company possesses a legal personality separate from its shareholders and directors. Property registered in the name of a company does not ordinarily belong to the shareholder personally. Accordingly, the deceased could not directly bequeath

company property as though it were his personal asset unless the will properly dealt with his shareholding or beneficial interest in the company.

However, this issue alone does not invalidate the entire will. At most, it may affect the efficacy or enforceability of the specific bequest concerning the immovable property. A distinction must be drawn between: the validity of the will itself; and the ability of a particular bequest to take effect. The plaintiffs sought invalidation of the entire testamentary instrument. The evidence does not justify such drastic relief.

Will contests appear to be unabating. Suffice it to observe that retention of a copy of one's will by one's lawyers is one way of safeguarding the testator's will and ensuring that it is guides their property distribution. Suffice it to observe that there are also other ways of safeguarding against future will contests, especially those centred on allegations of execution fraud. For instance, in addition to formal will execution, encouraging testators to also do a video recording showing will execution or even getting the testator to write a letter explaining their intentions may be important. This would probably reduce contestations from disgruntled family members and would also help to give full effect to their intentions. With fast changes in technology use and access, the time may not be too far for radical changes in will formalities and execution in terms of recognising video made wills.

Findings

The court accordingly makes the following findings: The plaintiffs failed to prove that the impugned will was forged or fraudulently executed. The evidence of the attesting witness supports the conclusion that the deceased duly executed the will voluntarily and with the requisite testamentary intention. The forensic evidence was inconclusive and insufficient to establish forgery. While the immovable property was registered in the name of a company, that fact alone does not invalidate the entire will. The plaintiffs therefore failed to establish grounds for setting aside the Letters of Administration issued to the first defendant.

Disposition

Accordingly, it is ordered that:

1. The plaintiffs' claim be and is hereby dismissed.
2. The Last Will and Testament of the late Gregory Michael Young Kee shall remain valid and operative.

3. The Letters of Administration issued appointing the first defendant as Executor Testamentary shall remain in force.
4. The plaintiffs shall jointly and severally bear the costs of suit.

TSANGA J:……...

Mufume Law Chambers: Plaintiff's Legal Practitioners
Dhlakama B Attorneys: First Defendant's Legal Practitioners